



Articles of Incorporation

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May 2, 2019

April 14, 2021

This English version of KRX Articles of Incorporation is for reference only. If there is a discrepancy between the Korean version and English version or discrepancy in the interpretation, the Korean version takes precedence over the English version.

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CHAPTER I. GENERAL PROVISIONS

§1. Name

The name of this Corporation shall be the Korea Exchange, Inc. (hereinafter referred to as "the Exchange") and the Exchange's acronym shall be the KRX. (Amended on January 14, 2009)

§2. Purpose

The Exchange shall endeavor to operate and manage each of the following business: (Amended on January 14, 2009, April 15, 2009; March 29, 2012; October 2, 2013; March 5, 2014; July 16, 2014; April 14, 2016; May 2, 2019)

1. Business related to the establishment and operation of the KOSPI Market, KOSDAQ Market, KONEX Market and Derivatives Market (hereinafter referred to as "the Markets");
2. Business related to trading of securities and exchange-traded derivatives products;
3. Business related to the clearing and settlement subsequent to the trading of securities and derivative products listed on the KRX Market;
- 3-2. Business related to the verification, clearing and settlement of derivatives traded in OTC markets (hereinafter referred to as "the OTC derivatives");
- 3-3. Business related to collecting, keeping and managing of the transaction information of the OTC derivatives;
4. Business related to the listing of securities;
5. Business related to the determination of transaction types and product groups of exchange-traded derivative products;
6. Business related to the reporting and disclosure by listed corporations;
7. Business related to market surveillance, investigation into abnormal trading and supervision of members;
8. Businesses related to the one-sided auction of securities;
9. Business related to the mediation of disputes arising from the trading in the KOSPI Market, KOSDAQ Market, KONEX Market and Derivatives Market (only in the case where there is a request from the concerned parties);

10. Business related to the dissemination and vending of data and information generated in the Markets;
11. 10-2. Business related to the development, calculation and sales of indices;
12. Business related to the development and operation of computer systems in connection with the operation of the Markets;
13. Business related to the leasing of real estates and computer facilities;
14. Business related to the entering into cooperation, linkage and alliance with the foreign exchanges (including their holding company: the same hereinafter) and foreign organizations dealing with the securities and derivatives;
15. Business related to the system export and provision of advisory service to foreign exchanges and organizations dealing with securities and derivative products;
- 14-2. Business related to the introduction and operation of spot electronic trading of petroleum;
- 14-3. Business related to the establishment and operation of the gold spot market;
- 14-4. Business related to the establishment and operation of the emissions trading market;
- 14-5. Business related to the provision of order information and the operation of information and communications networks in relation to the OTC transaction of stocks of the person, etc. who have issued securities through the brokerage of online small investments (hereinafter referred to as “the crowdfunding company”).
- 14-6. Business related to the support for the intermediation of mergers and acquisitions of small and medium enterprises and venture businesses, etc.
16. In addition to the business noted in subparagraphs 1 through 14-6, the business delegated pursuant to the laws and regulations; and
17. Any other business incidental to the business stipulated in subparagraphs 1 through 15.

§2-2. Amendment of Articles of Incorporation

When intending to amend its Articles of Incorporation, the Exchange shall obtain the approval of the Financial Services Commission after the resolution of the general shareholders' meeting.

[April 15, 2009]

§3. Location of Main Office, etc.

- (1) The Exchange shall locate its main office in Busan Metropolitan City.
- (2) When it is deemed necessary, the Exchange may, upon the resolution of the Board of Directors (hereinafter referred to as “the Board”), establish a branch, outlying office, business office or subsidiary company in Korea and abroad.
- (3) The Management Strategy Division, the Derivatives Market Division, the Clearing and Settlement Division, and the organizations in which the Exchange has made investments or contributions in connection with the Derivatives Market shall be located in Busan Metropolitan City. (Amended on January 14, 2009; April 14, 2021))

§4. Application of Commercial Act, etc.

Except for the cases that are specifically stipulated in this Articles of Incorporation, the Financial Investment Services and Capital Markets Act (hereinafter referred to as “the Act”), the provisions of the Commercial Act that are relevant to the stock company shall be applied to the Exchange. (Amended on January 14, 2009; April 15, 2009; May 15, 2015)

§5. Method of Official Announcement

The Exchange shall make its official announcement through its website (<http://www.krx.co.kr>). However, in case where the official announcement on the Exchange website is not possible due to system failure or other inevitable situation, the official information shall be posted on the Pusan Ilbo published in Busan Metropolitan City and Seoul Shinmun published in Seoul Metropolitan City, respectively.

(Wholly amended on May 15, 2015)

CHAPTER II. STOCKS

§6. Total Number of Stocks to be Issued

Total number of stocks to be issued by the Exchange shall be 160 million shares. (Amended on April 10, 2007)

§7. Price per Share

The price of the stocks issued by the Exchange shall be KRW 5,000 per share.

§8. Total Number of Stocks to be Issued at the time of Inauguration

Total number of the stocks to be issued at the time of inauguration of the Exchange shall be 20 million common registered stocks.

§9. Classes of Stocks, etc.

- (1) The stocks to be issued by the Exchange shall be the registered common stocks and the registered different classes of stocks. (Amended on April 10, 2007; May 2, 2019)
- (2) The different classes of stocks issued by the Exchange shall be the preferred stocks concerning profit dividends (hereinafter referred to as “preferred stocks”). [May 2, 2019]
- (3) The stock certificates to be issued by the Exchange shall be in total of eight (8) denominations of 1-share, 5-share, 10-share, 50-share, 100-share, 500-share, 1,000-share and 10,000-share.

§9-2. Number and Details of Preferred Stocks

- (1) The preferred stocks to be issued by the Exchange shall be the nonvoting share and the number of preferred stocks to be issued shall be 40,000,000.
- (2) The Board shall determine the preferred dividend rate, which is higher than an annual rate of 10/100 on the basis of the face value, at the time of issuing the preferred stocks.
- (3) In cases where the dividend rate of common stock exceeds the dividend rate of preferred stock, as to the excess amount, the same rate shall be added in the dividend rate of the preferred stock as in the case of common stock before paying dividends.
- (4) In cases where the required dividend has not been paid to preferred stocks for a business year, the payment of accumulated unpaid dividend shall take the precedence at the dividend payout time in the following business year.
- (5) In cases where there has been a decision not to pay the required dividend for the preferred stock, it shall be deemed that the preferred stocks have the voting right from the date of general shareholders’ meeting subsequent to the general shareholders’ meeting that voted for that decision to the closing time of the general shareholders’ meeting that approves the decision to make a preferential dividend payment.
- (6) In cases where the Exchange makes a capital increase with and without consideration or pays stock dividends, it shall, in principle, issue common stocks for the common stocks and preferred stocks for the prepared stocks with the same condition at the respective shareholding rate. However, when it is deemed necessary, the Exchange may issue only one class of stock, and in this case, all shareholders have the right to the allotment or dividend for

the stocks to be issued.

[April 10, 2007]

§9-3. Subscription Rights

(1) When new stocks are issued, the shareholders shall have the right to allotment of new stocks in proportion to the number of stocks owned.

(2) Notwithstanding paragraph (1), in any of the following cases, new stocks may be allotted to non-shareholders according to the decision of the Board: (Amended on January 14, 2009; April 15, 2009; February 21, 2018; May 2, 2019)

1. In the case of making public offering pursuant to [§119] of the Act or having made the underwriter to underwrite for the public offering;
2. In the case of issuing new stocks as a capital increase by way of public offering upon the decision of the Board pursuant to [§165-6] of the Act;
3. In the case of preferentially allotting new stocks to the members of the employee stock ownership association pursuant to [§165-7] of the Act;
4. In the case of issuing new stocks subsequent to the exercise of stock option pursuant to [§542-3] of the Commercial Act;
5. In the case of issuing new stocks subsequent to the exercise of employee stock options pursuant to [§39] of the Framework Act on Labor Welfare;
6. In the case of issuing new stocks subsequent to the issuance of depository receipts (DRs) pursuant to [§165-16] of the Act;
7. In the case of issuing new stocks to the foreign exchange concerned for the purpose of cooperation and alliance with a foreign exchange; and
8. In the case of issuing new stocks to the domestic or foreign financial institutions for the purpose of raising the capital needed urgently.

(3) In cases where the subscription rights is surrendered or denied or the fractional shares are resulted in the course of allotting new stocks, such cases shall be handled according to the decisions of the Board.

[April 10, 2007]

§9-4. Capital Increase through Public Offering

(1) Pursuant to [§165-6] of the Act, within the quantity that is less than 20/100 of total

number of stocks issued, the Exchange may issue the new stocks through the capital increase by public offering upon the decision of the Board. (Amended on January 14, 2009)

(2) When issuing new stocks pursuant to paragraph (1), the class, quantity and issuing price of stocks to be issued shall be determined by the decision of Board. However, in this case, the issuing price shall be higher than the price stipulated in [§165-6(2)] of the Act. (Amended on January 14, 2009)

[April 10, 2007]

§9-5. Stock Options

(1) The Exchange may grant the stock options pursuant to Article 542-3(3) of the Commercial Act, within the quantity that is less than 15/100 of total number of stocks issued, to its officers and employees by way of the special resolution of general shareholders' meeting. However, the stock option, which is within the number of stocks prescribed in Article 542-3(3) of the Commercial Act and Article 30(4) of the Enforcement Decree of the same Act, may be granted by way of the Board's resolution. (Amended on January 14, 2009; May 2, 2019)

(2) The stock options shall be granted to the officers and employees who make or can make contributions to the establishment, management or technology innovation of the Exchange, but shall exclude the persons falling under any of the following subparagraphs: (Amended on January 14, 2009; February 21, 2018)

1. The largest shareholder (referring to the largest shareholder prescribed in item (a) under subparagraph 6 of [§2] of the Act on Corporate Governance of Financial Companies. In such cases, the "financial company" shall be construed as the "Exchange") and the related persons thereof (referring to the related persons prescribed in item (a) under subparagraph 6 of [§2] of the Act on Corporate Governance of Financial Companies; the same hereinafter). However, any person who falls under the related persons as a result of becoming an officer of the Exchange shall be excused;

2. A major shareholder (referring to the major shareholder prescribed in item (b) under subparagraph 6 of [§2] of the Act on Corporate Governance of Financial Companies. In such cases, the "financial company" shall be construed as the "Exchange"; the same hereinafter in this Article) and the related persons thereof. However, any person who falls under the related persons as a result of becoming an officer of the Exchange shall be excused; and

3. The person who becomes a major shareholder by exercising the stock options.

(3) The stocks to be delivered as a result of exercise of stock options (in case of delivering the difference between the exercise price of stock options and the market price in cash or treasury stocks, it refers to the stock that is used as the base of calculating the difference) shall be the common stocks or preferred stocks.

(4) The stock options granted to any one (1) officer or employee shall not exceed 1/100 of total number of stocks issued.

(5) The stock options shall be exercised within five (5) years from the date that has elapsed two (2) years since the decision date noted in paragraph (1).

(6) Any person granted a stock option shall hold the office or work for at least two (2) years from the date of resolution noted in paragraph (1) before exercising the stock option. However, in cases where a person granted a stock option dies within two (2) years from the resolution date mentioned in paragraph (1), or retires or resigns from the office due to an event not attributable to the person (excluding retirement or resignation due to old age), such person may exercise his/her stock option during the relevant exercise period. (Amended on February 21, 2018)

(7) The provisions of [§9-7] shall apply *mutatis mutandis* to the distribution of dividends to the new stocks issued as a result of exercise of stock options.

(8) The Exchange may revoke the grant of stock options upon resolution of the board of directors in any of the following cases: (Amended on May 2, 2019)

1. Case where the officer or employee who was granted a stock option retires or resigns on his/her own decision;
2. Case where the officer or employee who was granted a stock option has caused a serious damage to the Exchange on intention or by mistake;
3. Case where the Exchange is bankrupt or dissolved, thus unable to comply with the exercise of stock options; or
4. Additionally, in cases where the reasons for retraction, which are specified in the agreement for granting the stock options, have occurred.

[April 10, 2007]

§9-6. Employee Stock Options

(1) The Exchange may grant the employee stock options pursuant to [§39] of the Framework Act on Labor Welfare, within the quantity that does not exceed 20/100 of total number of stocks issued, to the members of the employee stock ownership association in accordance with the decision of the general shareholders' meeting. However, the employee stock options of which the quantity is less than 10/100 of total number of stocks issued may be granted through the Board's decision. (Amended on February 21, 2018)

(2) The stocks to be delivered as a result of exercise of employee stock options shall be either the common stocks or the preferred stocks.

(3) The employees shall not transfer the employee stock options received to another person, and shall retain the membership of the employee stock ownership association until the time of exercising the concerned employee stock options. However, in case where an employee who received the employee stock options has died, it shall be deemed that the heir of the deceased has inherited them.

(4) The provisions of [§9-7] shall be applied *mutatis mutandis* to the distribution of profits to the new stocks issued as a result of exercise of employee stock options.

(5) In the case of falling under any of the following subparagraphs, the Exchange may retract the employee stock options granted in accordance with the decisions of the Board: (Amended on May 2, 2019)

1. The member of the employee stock ownership association, who has received the employee stock options, has caused a serious damage to the Exchange on intention or by mistake;

2. In cases where the Exchange is bankrupt or dissolved, thus unable to comply with the exercise of stock options; or

3. Additionally, in cases where the reasons for retraction, which are specified in the agreement for granting the employee stock options, have occurred.

(6) The Exchange may not grant the employee stock options to the member of employee stock ownership association who have less than one (1) year of continuous service.

[April 10, 2007]

§9-7. Record Date for Dividend Payment of New Stocks

When the Exchange issues the new stocks as a result of capital increase with/without consideration or stock dividend, with regard to the dividends allotment, it shall be deemed that the new stocks have been issued at the end of the business year preceding the business year which includes the issuing date of new stocks belongs.

[April 10, 2007]

§9-8. Transfer Agent

(1) The Exchange may retain a transfer agent for its stocks. (Amended on February 21, 2018)

(2) The transfer agent, its location and the range of services provided by the agent shall be determined by the resolution of the board of directors and the Exchange shall make public such decisions.

(3) When it retains a transfer agent pursuant to paragraph (1), the Exchange shall keep the shareholder register or a copy of shareholder register in the office of the transfer agent, and shall let the transfer agent to handle the administrative matters about the stocks, such as the stock transfer, registration or cancellation of right of pledge, indication or cancellation of trust assets, receipt of report, etc. (Amended on February 21, 2018)

(4) The matters noted in paragraph (3) shall be handled according to the procedures stipulated in the regulations that the transfer agent has established for the transfer of shareholder's name, etc. (Amended on January 14, 2009)

[April 10, 2007]

§9-9. Reporting of Addresses, Names, Seals or Signatures of Shareholders, etc.

(1) The shareholders and registered pledgees shall report their names, addresses and seals/signatures to the Exchange (the transfer agent in the case of retaining a transfer agent pursuant to [§9-8(1)]). (Amended on February 21, 2018)

(2) The shareholders and registered pledgees who reside abroad shall establish the mailing address in Korea and appoint an agent based in Korea, and report them to the transfer agent.

(3) In cases where there is a change in the matters to be reported under paragraphs (1) and (2), the shareholders shall do the same. (Amended on May 2, 2019)

[April 10, 2007]

§10. Closing of Register of Shareholders and the Record Date thereof

(1) The Exchange shall close down the register of shareholders, suspending the change of records relating to shareholder's rights, from January 1st to January 31st each year.

(2) The Exchange shall regard those shareholders who are recorded in the register of shareholders as of the December 31st of each year as the shareholders who are entitled to exercise the shareholders' rights at the general shareholders' meeting for the accounting period.

(3) In cases where an extraordinary shareholders' meeting is called or it is deemed necessary, the Exchange may close down the register of shareholders, suspending the change of records about shareholders' rights, for a specified period up to one (1) month upon the resolution of the Board or regard those shareholders who are recorded in the register of shareholders as of the date determined by the resolution of Board as the shareholders who are entitled to exercise the shareholders rights, and when the Board deems it necessary, the Exchange may close down the register of shareholders and set the record date at the same time. In this case, the Exchange shall make such fact public by two (2) weeks before the date of such closing or record date.

CHAPTER II-2. CORPORATE BONDS

§10-2. Issuance of Convertible Bonds

(1) In any of the following cases, the Exchange may issue convertible bonds, the amount of which is less than KRW 150 billion in total amount of face value, to the non-shareholders in accordance by the resolution of the board of directors. (Amended on January 14, 2009; Amended on May 2, 2019)

1. Case of issuing the convertible bonds to an unspecified number of persons (including the shareholders of the Exchange);
2. Case of issuing the convertible bonds to a foreign exchange for the purpose of forming an alliance or cooperation with the concerned foreign exchange;
3. Case of issuing the convertible bonds abroad pursuant to [§165-16] of the Act; and
4. Case of issuing the convertible bonds to the domestic or foreign financial institutions for the purpose of raising capital needed urgently.

(2) With respect to the convertible bonds under paragraph (1), the Board may decide to issue the convertible bonds noted in paragraph (1) with the condition of granting the conversion

right to a part of the bonds issued.

(3) The stocks to be issued as a result of the conversion shall be either the common stocks or preferred stocks, and the conversion price that is equal to or higher than the face value shall be determined by the Board at the time of issuing the bonds.

(4) The period during which the conversion request may be made shall be from the day after the issuing date to the day before the redemption date. However, the conversion request period may be adjusted within the period noted above according to the decisions made by the Board. (Amended on May 2, 2019)

(5) The provisions of [§9-7] shall be applied *mutatis mutandis* to the distribution of dividends to the new stocks issued as a result of the conversion.

[April 10, 2007]

§10-3. Issuance of Bonds with Warrants

(1) In any of the following cases, the Exchange may issue bonds with warrants, within the range of KRW 150 billion in total amount of face value, to non-shareholders by the resolution of the board of directors: (Amended on January 14, 2009; May 2, 2019)

1. Case of issuing the bonds with warrants to unspecified number of persons (including the shareholders of the Exchange);
2. Case of issuing the bonds with warrants to a foreign exchange for the purpose of forming an alliance or cooperation with the concerned foreign exchange;
3. Case of issuing the bonds with warrants abroad pursuant to [§165-16] of the Act; and
4. Case of issuing the bonds with warrants to domestic or foreign financial institutions for the purpose of raising capital needed urgently.

(2) The amount of new share subscription that can be requested shall be determined by the Board, within the total face value of bond.

(3) The stocks to be issued as a result of the exercise of subscription rights shall be either the common stocks or preferred stocks, and the issuing price of new stocks that is equal to or higher than the face value shall be determined by the Board at the time of issuing the bonds.

(4) The period during which the subscription rights may be exercised shall be from the day after the issuing day to the day before the redemption date. However, the exercise period may be adjusted within the period noted above through the Board's decision. (Amended on May 2, 2019)

(5) The provisions of [§9-7] shall apply *mutatis mutandis* to the distribution of dividends to

the new stocks issued as a result of exercising the subscription rights.

[April 10, 2007]

§10-4. Provisions Applied to Issuance of Bonds

The provisions of [§9-8 and §9-9] shall apply *mutatis mutandis* to the issuance of bonds.

[April 10, 2007]

CHAPTER III. GENERAL SHAREHOLDERS' MEETING

§11. Convening of Meeting

(1) There shall be the general shareholders' meeting and extraordinary shareholders' meeting, and the general shareholders' meeting shall be convened within three (3) months after the end of each business year and the extraordinary shareholders' meeting shall be convened as the needs arise.

(2) Except for the cases where there are other regulations pursuant to the laws, the shareholders' meeting shall be convened by the Chairman of the Exchange (hereinafter referred to as "the Chairman") in accordance with the resolutions of the Board.

(3) When convening a shareholders' meeting, the Exchange shall notify the date, place and purposes of the meeting to all shareholders no later than two (2) weeks before the date of the meeting by sending a written notice via postal service or electronic messaging system.

(4) Notwithstanding paragraph (3), the meeting notification to the shareholders who hold less than 1/100 of total number of shares issued may be substituted by making an announcement of intention of convening the general shareholders' meeting and the detailed objectives thereof at least two (2) times in each of the Pusan Ilbo published in Busan and the Seoul Shinmun published in Seoul by two (2) weeks before the meeting date. [April 10, 2007]

§12. Location of Meeting

The shareholders' meeting shall be held at the place where the main office of the Exchange is located or the place determined by the Board.

§13. Chairperson of Shareholders' Meeting

(1) The chairperson of the shareholders' meeting shall be the Chairman.

(2) In case where the Chairman is absent, the deputy designated pursuant to the proviso to [§23(1)] shall act as the chairperson. [April 10, 2007]

§14. Power of Chairperson in Maintaining Order

(1) The chairperson of the shareholders' meeting may prohibit a person, who clearly disturbs the order of meeting by making speech or acting for the purpose of intentionally obstructing the proceedings of meeting, from speaking or order a person to leave.

(2) In cases where it is deemed necessary for the effective proceedings of meeting, the chairperson of shareholders' meeting may limit the duration and frequency of speech by the shareholders.

§14-2. Voting Rights

The shareholders shall have one (1) voting right per share.
[April 10, 2007]

§15. Methods of Decision Making at Shareholders' Meeting

A resolution at the shareholders' meeting shall, except otherwise specified pursuant to the laws or this Articles of Incorporation, be adopted by a majority of the votes cast by the voting members present at the meeting, which must represents at least $\frac{1}{4}$ of the total number of stocks issued.

§16. Exercise of Voting Rights in Writing

(1) In cases where a written resolution is determined by the resolution at the board of directors meeting held to decide the convening of the general meeting of shareholders, a shareholder may exercise his/her voting rights by expressing its consent or dissent in writing, without being present at the meeting. (Amended on February 21, 2018)

(2) In cases where a shareholder exercises voting rights in writing pursuant to paragraph (1), the Exchange shall attach to the notice on convocation of the general meeting of shareholders the form and reference materials that are necessary for the exercise of voting rights pursuant to paragraph (1). (Amended on February 21, 2018)

(3) Any shareholder who intends to exercise its voting rights by written vote shall complete the form noted in paragraph (2) by recording the necessary matters and submit the completed form to the Exchange by the day before the meeting date.

§16-2. Exercise of Voting Rights through Proxy

(1) The shareholders may let his/her proxy to exercise the voting rights.

(2) The proxy noted in paragraph (1) shall be limited to the shareholders of the Exchange and shall submit the written letter proving the power of attorney before the opening of the general meeting of shareholders. However, shareholders who are corporations may appoint their officers or employees as the proxy. (Amended on February 21, 2018)

[April 10, 2007]

§16-3. Minutes of General Shareholders' Meeting

With regard to the deliberations at the general shareholders' meetings, the minutes, which records the main points of discussions and outcomes thereafter and is sealed or signed by the chairperson and directors presented at the meeting, shall be furnished in the head office and branch offices of the Exchange. [April 10, 2007]

CHAPTER IV. OFFICERS AND BOARD OF DIRECTORS

§17. Number of Officers

(1) The Exchange shall have fifteen (15) officers as stipulated in each of the following subparagraphs: (Amended on April 15, 2009; July 16, 2014; May 15, 2015; February 21, 2018; May 2, 2019)

1. One (1) Chairman and Chief Executive Officer;
2. One (1) standing director, who is one of the audit committee members (hereinafter referred to as "standing audit committee member")
3. One (1) Chairperson of the Market Oversight Committee;
4. [Deleted on February 21, 2018]
5. Four (4) standing directors; and
6. Eight (8) non-standing directors, who are the outside directors (hereinafter referred to as "outside director").

(2) The outside directors shall be five (5) public directors who represent public interests, and three (3) directors representing the investment dealing companies or investment brokerage companies. (Amended on January 14, 2009)

(3) The Exchange shall have one (1) senior non-standing director, who is elected among and by the outside directors. In such cases, the qualifications and authority of the senior non-standing director shall be established by the regulations of the board or directors. [April 15, 2009] (Amended on February 21, 2018)

§18. Qualification of Officers

(1) No major shareholders of the investment dealing companies or investment brokerage companies (referring to the major shareholders prescribed in item (b) under subparagraph 6 of [§2] of the Act on Corporate Governance of Financial Companies) shall be appointed as an officer stipulated in [§17(1)1 through 5] (hereinafter referred to as the “standing officer”). (Amended on April 10, 2007; January 14, 2009; May 15, 2015; February 21, 2018)

(2) The candidates for the outside director representing the public interests shall be the person falling under any of the followings, as a person who is not engaged in the business of investment dealing or investment brokering or in the business directly related thereto, while having good knowledge about the securities and derivative products: [January 14, 2009] (Amended on April 15, 2009; October 2, 2013)

1. Any person who is able to make a fair-minded decision for the public interest and investor protection in view of the knowledge and experiences in finance, securities and derivative products and has over ten (10) years of working experiences in the related fields;

2. Any person who holds a doctorate or higher degree in the field of law, economy, management or the fields related to securities and derivative products and has over ten (10) years of working experiences in a university or certified research institution; or

3. Certified lawyers or accountants who have over ten (10) years of working experiences in the legal or accounting field in a government office, law office or accounting company.

(3) The candidates representing the investment dealing companies or investment brokerage companies shall be the chief executive officer of the investment dealing companies or investment brokerage companies that are the members (including the clearing member of OTC derivatives) of the Exchange. [January 14, 2009] (Amended on April 15, 2009; October 2, 2013)

(4) Any person who falls under the disqualification clauses specified in [§382] of the Act shall be prohibited from becoming an officer of the Exchange. [April 15, 2009] (Amended on May 15, 2015)

§19. Appointment of Officers, etc.

(1) The Chairman, standing audit committee member and outside directors shall be appointed

respectively at the general shareholders' meeting upon the recommendation made by the Officer Candidate Nomination Committee pursuant to [§385(1)] of the ACT (hereinafter referred to as "candidate nomination committee"). (Amended on May 15, 2015)

(2) [Deleted on May 15, 2015]

(3) [Deleted on May 15, 2015]

(4) The standing directors mentioned in [§17(1)5] shall be appointed at the general shareholders' meeting - three (3) upon the recommendation of the Chairman and one (1) upon the recommendation of the KOSDAQ Market Committee. (Amended on May 15, 2015; February 21, 2018)

(5) When the KOSDAQ Market Committee recommends a standing director pursuant to paragraph (4), the chairperson of the KOSDAQ Market Committee (hereinafter referred to as the "KOSDAQ Market Chairperson") shall consult with the Chairman. [July 16, 2014] (Amended on May 15, 2015; February 21, 2018)

(6) The Chairperson of the Market Oversight Committee shall be appointed at the general shareholders' meeting upon the recommendation made by the Market Oversight Committee pursuant to [§402] of the Act. (Amended on May 15, 2015)

(7) When electing and appointing two (2) or more directors, the accumulative voting system stipulated in [§382-2] of the Commercial Act shall not be applied.

(Wholly amended on April 15, 2009)

§20. Candidate Nomination Committee, etc.

(1) The Candidate Nomination Committee is composed of following members appointed by the Chairman: (Amended on May 15, 2015)

1. Five (5) outside directors;
2. Two (2) persons recommended by the Korea Financial Investment Association;
3. One (1) representative officer of a corporation listed in the KOSPI market upon the recommendation made by the Korea Listed Companies Association; and
4. One (1) representative officer of a corporation listed in the KOSDAQ market upon the recommendation made by the KOSDAQ Listed Companies Association.

(2) The matters necessary for the operation of the Candidate Nomination Committee and other matters shall be stipulated in the regulation of the Board. (Amended on May 15, 2015)

(Wholly amended on April 15, 2009)

§21. Term of Office of Officers

(1) The term of the officers shall be three (3) years and may be extended for a period of one (1) year each time. (Amended on May 15, 2015)

(2) [Deleted on May 15, 2015]

(3) The officers whose term has been expired shall continue to perform their duties until his/her successor has been appointed. (Amended on April 15, 2009)

(Wholly amended on April 15, 2009)

§21-2. Recommendation for Dismissal of President of KOSDAQ Market Division

The KOSDAQ Market Committee may recommend the dismissal of the President of the KOSDAQ Market Division to the general meeting of shareholders if he/she is significantly unfit to perform his/her duties or commits a serious violation of obligations stipulated in the statutes or the articles of incorporation. [February 21, 2018]

§22. Filling Vacant Post of Officer

(1) In case where there is a vacancy in the post of officers, the vacant position shall be filled in accordance with the procedures stipulated in [§19]. (Amended on April 15, 2009; May 15, 2015)

(2) In case where the number of outside directors fell short of the majority of the total number of officers, the majority requirement shall be satisfied at the general shareholders' meeting that is held for the first time after the cause of shortage has occurred.

(3) The term of the officer filling the vacant position pursuant to paragraph (1) shall, notwithstanding the remaining term of the predecessor, be determined according to the specification in [§21(1)]. [April 15, 2009]

§23. Duties of Officers, etc.

(Amended on April 14, 2021)

(1) The Chairman shall represent the Exchange and be responsible for the overall management of business thereof. At the time of a mishap of the Chairman, the officers, in the order designated by the Board in advance, shall assume the duties and functions of the Chairman.

(2) The president of each business division shall assist the Chairman, and shall accomplish the functions of the concerned Division that he/she is in charge of. (Amended on July 16, 2014)

§24. Composition of Board of Directors

The Board shall be composed of the officers specified in each subparagraph of [§17(1)] (hereinafter referred to as “the directors”). (Amended on May 2, 2019)

§25. Convening Board of Directors Meeting

- (1) The meeting of Board shall be convened at least once in every three (3) months.
- (2) The Chairman shall convene a meeting of the Board and preside over the meeting. (Amended on May 15, 2015)
- (3) A director may ask the Chairman to convene the Board meeting. [May 15, 2015]
- (4) In cases where the Chairman plans to convene a Board meeting, each director shall be notified, in writing, of the planned meeting at least seven (7) days before the scheduled meeting date via postal service or electronic messaging system. However, in case where the convener deems it urgent, such notification period may be shortened and when there is a unanimous consent, the Board meeting may be held without such notification procedure. (Amended on April 15, 2009)

§26. Matters to be Resolved at Board Meeting

- (1) The decisions on each of the following matters shall be made at the Board meeting: (Amended on April 15, 2009; May 2, 2019)
 1. Establishment of the business objectives, budget and operational plans;
 2. Establishment, amendment and abolition of material regulations relating to the operation and business of the Exchange;
 3. Acquisition, disposal and transfer of the principal assets;
 4. Leasing of major assets and borrowing of long-term cash loans;
 5. Investment in and donation to other corporations;
 6. Establishment of a branch office, outlying office, business office or field office in Korea and abroad, and relocation and closure thereof;
 7. Usage of voluntary reserve;
 8. Matters to be referred to the general shareholders’ meeting;
 9. Matters that may have material impact to the Exchange’s business, which any director deems the Board’s decisions on such matters necessary; and
 10. Additionally, the matters that are stipulated in relevant laws, this Articles of

Incorporation and the regulations of the Exchange.

(2) The Board meeting may determine the details of the scope or boundary of matters stipulated in subparagraphs 2 through 5 of paragraph (1), which are to be resolved by the Board.

§27. Operation of Board Meeting

(1) In case where there is no other regulation in this Articles of Incorporation and regulations of the Exchange, the resolution at the Board meeting shall be made by a majority of the votes casted by the members presented at the meeting where a majority of the Board members presented. However, the resolution of the Board on matters corresponding to [§397-2] and [§398] of the Commercial Act shall be made by at least 2/3 of votes of total Board members registered. (Amended on May 15, 2015)

(2) When it is deemed necessary, the Board may request the executive officers or employees to attend the Board meeting and present his/her opinions. (Amended on April 15, 2009)

(3) Matters required for the operation of Board meeting and other necessary matters shall be stipulated in the regulation of the Board.

§27-2. Minutes of Board Meeting

(1) Pertaining to the proceedings of the Board meeting, the minutes shall be prepared.

(2) The minutes shall record the agenda, key points of deliberation, the outcomes thereafter, and the names of opposing members and the reasons for opposition, and the Chairman and the members presented at the meeting shall write down their names and put their seals or signatures on the minutes.

[April 10, 2007]

CHAPTER V. COMMITTEES OF THE BORAD

Section 1. General Provisions

§28. Establishment of Committees within Board of Directors

(1) The Exchange shall establish each of the following committees as prescribed in Article 393-2 of the Commercial Act, within the Board (hereinafter referred to as “the Board Committees”): (Amended on January 14, 2009; October 2, 2013; May 2, 2019)

1. Each of the following market committees;
 - a. KOSPI Market Committee; and
 - b. [Deleted on October 2, 2013]
 - c. Derivatives Market Committee
2. Compensation Committee;
3. Audit Committee;
4. Risk Management Committee; and
5. In addition, other Board committees that the Board deems them necessary.

§29. Operation of Board Committees

- (1) The Board Committees stipulated in [§28/1 & 4] shall notify to each Board member any decision that it has made. In this case, any director may request to convene a Board meeting within the period specified by the Board Committees, and the Board may yet again make a decision on the matter that the Board committees have decided.
- (2) The matters relating to the operation and authorities of the Board committees shall be stipulated in the regulations of the Board.

Section 2. Market Committees

§30. Composition of Market Committees

The Market Committees shall be composed as follows. In this case, the Board shall choose the Committee members who are the outside directors. (Amended on January 14, 2009; October 2, 2013)

1. KOSPI Market Committee
 - a. President of the KOSPI Market Division;
 - b. Three (3) public directors from the outside directors; and
 - c. One (1) outside director who is a representative of investment dealing companies or investment brokerage companies.
2. [Deleted on October 2, 2013]
3. Derivatives Market Committee
 - a. President of the Derivatives Market Division;

- b. Two (2) public directors from the outside directors; and
- c. Two (2) outside directors who are representatives of investment dealing companies or investment brokerage companies.
- d. [Deleted on January 14, 2009]

§31. Operation of Market Committees

(1) The chairperson of a market committee shall be the president of the relevant Market Division. However, at the time of a mishap of the chairperson, the Committee members, in the order designated by the concerned Market Committee in advance, shall assume the duties and functions of the Committee chairperson on his/her behalf.

(2) The Market Committee meetings shall be convened by the Committee chairperson, and other members of the Market Committee may request the chairmen to convene a Market Committee meeting.

(3) Executive officers may attend the concerned Market Committee meeting and present his/her opinions.

§32. Authorities of the Market Committees

The Market Committees shall deliberate and resolve the matters stipulated in this Articles of Incorporation, the matters delegated to them by the Board, and the matters that the President of concerned Market Division deems it necessary for the market operation.

Section 3. Compensation Committee

§33. Composition of Compensation Committee

The Compensation Committee shall be composed of up to five (5) members chosen from the outside directors by the Board and the Committee members shall elect its own chairperson.

§34. Duties of the Compensation Committee

(1) The Compensation Committee shall establish the remuneration of the standing officers within the compensation scale that has been approved by the general shareholders' meeting, and may set up the necessary guidelines thereof. (Amended on July 16, 2014; May 15, 2015)

(2) The Compensation Committee shall establish the guidelines for retirement payment of the standing officers and obtain the approval of the general shareholders' meeting.

Section 4. Audit Committee

§35. Composition of Audit Committee

- (1) The Audit Committee shall be consisted of the standing audit committee member and two
- (2) outside directors. In this case, at least one (1) member of the Committee shall be a specialist in accounting or finance. (Amended on July 16, 2014)
- (2) The chairperson of the Committee shall be an outside director representing the public interests, and in case where there are two (2) public directors, the chairperson shall be elected among the Committee members.

§36. Duties of Audit Committee

- (1) The Audit Committee shall audit the accounts and business of the Exchange.
- (2) The Audit Committee may request to convene an extraordinary shareholders' meeting by submitting a written statement outlining the objectives of and reasons for such shareholders' meeting to the Board.

Section 5. Risk Management Committee

[October 2, 2013]

§36-2. Composition of Risk Management Committee

The Risk Management Committee shall consist of President of Management Strategy Division and two (2) outside directors that the Board decides on (limited to the legal specialist or specialist in finance), and the chairperson of the Committee shall be elected according to the Board Regulation.

[October 2, 2013]

§36-3. Duties of Risk Management Committee

The Risk Management Committee shall make the policy decisions about risk management, define and manage the risk limit, and establish and operate the risk management system, and may specify the matters necessary for the risk management.

[October 2, 2013]

CHAPTER VI. ORGANIZATIONAL STRUCTURE AND BUSINESS

Section 1. General Provisions

§37. Division of Markets

(1) The Markets operated by the Exchange shall be divided into the securities markets and Derivatives Market and the securities markets shall be divided into the KOSPI Market, KOSDAQ Market and KONEX Market. (Amended on January 14, 2009; October 2, 2013)

(2) In the KOSPI Market, KOSDAQ Market and KONEX Market, the securities stipulated in [§4(1)] of the Act shall be traded, and in the Derivatives Market, the exchange-traded derivatives noted in [§5(2)] of the Act shall be traded. (Amended on January 14, 2009; October 2, 2013)

§38. Establishment of Business Divisions

(1) The Exchange shall have each of the following business Divisions in order to accomplish its business functions: (Amended on January 14, 2009; July 16, 2014; May 2, 2019; April 14, 2021)

1. Management Strategy Division;
2. KOSPI Market Division;
3. KOSDAQ Market Division;
4. Derivatives Market Division;
5. Market Oversight Division; and
6. Clearing and Settlement Division.

(2) Each of the business divisions under each subparagraph of paragraph (1) shall have a president as follows: (Amended on February 21, 2018; April 14, 2021)

1. The presidents of the Management Strategy Division, KOSPI Market Division and Derivatives Market Division shall be appointed by the Chairman from among the standing directors appointed by the recommendation of the Chairman pursuant to [§19(4)];
2. The President of the KOSDAQ Market Division shall be the standing director appointed by the recommendation of the KOSDAQ Market Committee pursuant to [§19(4)];

3. The President of the Market Oversight Division shall be the Chairperson of the Market Oversight Commission; and

4. The President of the Clearing and Settlement Division shall be an executive officer appointed by the Chairman pursuant to [§39(2)].

(3) The matters relating to the organization of offices of each of the business divisions shall be stipulated in the regulations of the board of directors. However, when amending the organization of the Market Oversight Division, the opinions of the Market Oversight Committee shall be taken into consideration. (Amended on July 16, 2014; February 21, 2018)

(4) Notwithstanding paragraph (3), the establishment of departments and teams of the KOSDAQ Market Division and the assignment of duties thereof shall be determined by regulations of the KOSDAQ Market Committee. In this case, the establishment limits and others set forth in the regulations of the board of directors pursuant to paragraph (3) shall be observed. [February 21, 2018]

§39. Executive Officers

(1) The Exchange may have up to two (2) executive officers who carry out the task stipulated in subparagraph 2 of paragraph (4) in each of business Divisions stipulated in [§38(1)]. However, in the case of business Divisions noted in [§38(1)1 & 2], up to three (3) executive officers may be appointed. (Amended on April 21, 2010; July 16, 2014; April 14, 2021)

(2) The executive officer of each business Division shall be appointed by the Chairman. (Amended on April 14, 2021)

(3) Term of executive officers shall be determined by the Board for up to two (2) years and the executive officers may be reappointed. (Amended on April 15, 2009)

(4) The executive officers shall perform their duties as follows: (Amended on April 14, 2021)

1. Duty of the President equivalent to [§23(2)] (limited to the President noted in [§38(1)6]); and
2. To assist the President of the Division to which they are appointed and perform a specific function of the Division that are assigned to them as determined by the President of the Division.

(5) The provisions of [§18(1)] in this Articles of Incorporation and [§382] of the Act shall be applied *mutatis mutandis* to the executive officers. (Amended on January 14, 2009)

§40. Personnel Administration for Employees

(1) The employees of the Exchange shall be appointed and dismissed by the Chairman.

(2) Transfer of employees between the business Divisions and promotion of employees shall be made by the Chairman, while taking into the consideration the recommendations of the President of the concerned business Division.

(3) The President of each business Division shall assign the duties and position of the employees in the business Division that he/she is in charge of.

(4) Matters necessary for the personnel administration shall be stipulated in the regulations of the Board.

§41. Business Plans and Budgets

(1) The Chairman shall prepare the business plans for the coming business years and draft the budget thereof, and obtain the approval of the Board.

(2) When establishing a business plan and preparing a budget pursuant to paragraph (1), the business plan and the related budget of the business Division in each of the following subparagraphs shall go through the deliberation of the Committee stipulated in the relevant subparagraph: (July 16, 2014; April 14, 2021)

1. KOSPI Market Division: KOSPI Market Committee;
2. KOSDAQ Market Division: KOSDAQ Market Committee;
3. Derivatives Market Division: Derivatives Market Committee;
4. Market Oversight Division: Market Oversight Committee; and
5. Clearing and Settlement Division: Clearing and Settlement Committee.

(3) The Chairman shall obtain the approval of the Board reflecting the results from the deliberation of the KOSDAQ Market Committee pursuant to paragraph (2), on the business plan and budget. In case where the business plan and budget reflecting the relevant results of the deliberation are considered to have conflict or not to correspond with the overall business plans and budgets or financial status of the Exchange, the Board may request the KOSDAQ Market Committee for a retrial, and may approve them after adjusting by itself. [July 16, 2014]

(4) The decisions on the usage of reserve funds and adjustment of reserve funds among the business Divisions shall be made by the resolution of the Board. Provided that the reserve funds allocated to a business Division in each subparagraph of paragraph (2) may be used upon the approval of the Committee stipulated in the relevant subparagraph. (Amended on July 16, 2014; April 14, 2021)

§42. Formulation, Amendment and Abolition of Regulations, etc. Related to Markets

(Amended on October 2, 2013; April 14, 2021)

(1) The formulation, amendment and abolition of the business regulation, disclosure regulation and listing regulation concerning the operation of the Markets, the business regulation concerning the clearing of OTC derivatives, and the business regulation concerning collecting, keeping and managing of transaction information of OTC derivatives shall be accomplished through the resolutions of the market Committees (it shall be the KOSDAQ Market Committee in the case of the regulation concerning the KOSDAQ Market Division and the Clearing and Settlement Committee in the case of the regulation concerning the Clearing and Settlement Division). (Amended on January 14, 2009; October 2, 2013; May 2, 2019; April 14, 2021)

(2) Notwithstanding paragraph (1), when the contents of the formulation, amendment and abolition of regulations such as the division of Markets, listing criteria, etc. may have considerable impact to the business of other business Divisions, or may be material matters in the business of the business Division concerned.

- (3) When the Market Committees, KOSDAQ Market Committee, Clearing and Settlement Committee or the Board intends to amend or abolish the regulations (excluding the business regulation concerning collecting, keeping and managing of the transaction information) pursuant to paragraphs(1) and (2), they shall consult with the President of the Market Oversight Division in advance. (Amended on April 14, 2021)
- (4) When the Market Committees, KOSDAQ Market Committee, or the Board intends to amend or abolish the business regulation (excluding matters concerning the clearing, settlement and risk management), disclosure regulation and listing regulation concerning the operation of the Markets and the business regulation concerning collecting, keeping and managing of transaction information of OTC derivatives pursuant to paragraphs (1) and (2), and if it is deemed that the concerned amendment or abolition of regulations is related to the clearing, settlement and risk management, they shall consult with the President of the Clearing and Settlement Division in advance. (Amended on April 14, 2021)
- (5) When the Clearing and Settlement Committee or the Board intends to amend or abolish the matters concerning the clearing, settlement and risk management of the business regulation concerning the operation of the Markets and the business regulation concerning the clearing of OTC derivatives pursuant to paragraphs (1) and (2), they shall consult with the Presidents of the relevant Market Divisions in advance. (Amended on April 14, 2021)

Section 2. Management Strategy Division

§43. Functions of Management Strategy Division

The Management Strategy Division shall undertake the tasks in each of the followings:
(Amended on January 14, 2009; April 21, 2010; May 18, 2011; February 21, 2018; May 2, 2019)

1. Businesses related to the establishment of business objectives;
2. Businesses related to the preparation of business plans, allocation of budget and settlement of accounts;
3. Business related to the performance evaluation of business Divisions;
4. Coordination of the work between the business Divisions;
5. Business related to the research, statistical analysis and international relations;
6. Business related to the public relations both in Korea and abroad;
7. Business related to the administration of member companies, including the member admission and withdrawal;
8. [Deleted on April 21, 2010]
9. Business related to the planning and development of computer systems (excluding the operation of computer system related to the functions of Market Oversight Division);
10. Business related to the management, supply and vending of market data and information;
- 10-2. Business related to the development, calculation and sales of indices and
11. Other business incidental to those specified in subparagraphs 1 through 10-2.

§44. Operation of Management Strategy Division

(1) The President of the Management Strategy Division shall be responsible for the implementation of functions of the Division stipulated in [§43].

(2) In case of absence of the President of the Management Strategy Division, an executive officer of the Management Strategy Division, who has been designated in advance by the

Chairman, shall undertake the responsibility specified in paragraph (1) on behalf of the President of the Management Strategy Division.

Section 3. KOSPI Market Division and Derivative Market Division

(Amended on July 16, 2014)

§45. Functions of KOSPI Market Division

The KOSPI Market Division shall undertake the tasks in each of the followings: (Amended on January 14; May 18, 2011; May 2, 2019; April 14, 2021)

1. Businesses related to the operation of the KOSPI Market, such as the opening and closing, suspension and shutdown of the market;
2. Businesses related to the execution of securities trading in the KOSPI Market;
3. Businesses related to the price publication of the KOSPI Market;
4. Businesses related to the listing review, listing approval and delisting of securities in the KOSPI Market;
5. Businesses related to the reporting and disclosure by the corporations listed on the KOSPI Market;
6. Businesses related to the regulation of corporations listed on the KOSPI Market, including the trading halt and suspension;
7. Businesses related to the system improvement, including the product development and the establishment and amendment of relevant regulations (excluding matters concerning the clearing, settlement and risk management) of the KOSPI Market; and
8. [Deleted on May 18, 2011]
9. In addition, businesses incidental to the tasks specified in subparagraphs 1 through 8.

§46. [Deleted on July 16, 2014]

§47. Functions of Derivatives Market Division

The Derivatives Market Division shall undertake each of the following tasks: (Amended on January 14, 2009; April 21, 2010; May 18, 2011; March 29, 2012; October 2, 2013; March 5,

1. 2014; July 16, 2014; May 2, 2019; April 14, 2021)Businesses related to the management of the Derivatives Market, such as the openingand closing, halting and shutdown of the market;

2. Businesses related to the trade execution of exchange-traded derivatives in the Derivatives Market;
3. Businesses related to the price publication of the Derivatives Market;
4. [Deleted on April 14, 2021]
5. Businesses related to the listing of exchange-traded derivatives products or contracts;
6. Businesses related to the system improvement, including the product development in the Derivatives Market, and the establishment and amendment of relevant regulations (excluding matters concerning the clearing, settlement and risk management);
7. [Deleted on May 18, 2011]
8. [Deleted on April 14, 2021]
9. Businesses related to the introduction and operation of spot electronic trading of petroleum;
10. Businesses related to the research, investigation and trading program about derivatives and commodity products;
11. [Deleted on April 14, 2021]
12. [Deleted on April 14, 2021]
13. Businesses related to collecting, keeping, managing and reporting of the transaction information of OTC derivatives;
14. Businesses related to the establishment and operation of the gold spot market.
15. Businesses related to the establishment and operation of the emissions trading market; and
16. Other businesses incidental to subparagraphs 1 through 15.

§48. Operation of Market Divisions

- (1) The President of the KOSPI Market Division and President of the Derivative Market Division shall have the overall responsibilities for the accomplishment of functions of the concerned Division stipulated in [§45] and [§47]. (Amended on July 16, 2014; April 14, 2021)
- (2) In cases of the mishap of the President of the KOSPI Market Division or President of the Derivative Market Division, an executive officer of the concerned Market Division, who has been designated by the Chairman in advance, shall undertake the responsibility of the President of the Division specified in paragraph (1). (Amended on July 16, 2014)

Section 4. KOSDAQ Market Committee and KOSDAQ Market Division

[July 16, 2014]

§48-2. Composition and Tasks of KOSDAQ Market Committee

(1) The KOSDAQ Market Committee shall consist of the non-standing members noted in each of the following subparagraphs: (Amended on July 16, 2014; February 21, 2018)

1. The KOSDAQ Market Chairperson;
2. One (1) outside director who represents the investment dealing companies or investment brokering companies;
3. One (1) person recommended by the Chairman of the Financial Services Commission;
4. One (1) person recommended by the Minister of SMEs and Startups;
5. One (1) person recommended by President of the Korean Bar Association;
6. One (1) person representing the KOSDAQ-listed companies, who is recommended by the KOSDAQ Listed Companies Association;
7. One (1) person recommended by the Korean Venture Capital Association;
8. One (1) venture expert recommended by the KONEX Association; and
9. One (1) person recommended by the Korea Financial Investors Protection Foundation.

(2) The committee member under each subparagraph of paragraph (1) shall be appointed in the following manner: [February 21, 2018]

1. The KOSDAQ Market Chairperson under paragraph (1)1 shall be appointed at the general meeting of shareholders upon recommendation of the KOSDAQ Market Committee;
2. The member under paragraph (1)2 shall be determined by the board of directors; and
3. The members under subparagraphs 3 through 9 of paragraph (1) (hereinafter referred to as the “members nominated by outside institutions”) shall be appointed at the general meeting of shareholders.

(3) The term of office of the KOSDAQ Market Chairperson and the members nominated by outside institutions shall be two (2) years and may be extended for one (1) additional year each time when the term of office expires. (Amended on February 21, 2018)

(4) Any member of the KOSDAQ Market Committee whose term of office expires shall perform his/her duties until his/her successor is appointed. [February 21, 2018]

(5) The provisions of [§5] of the Act on Corporate Governance of Financial Companies shall

apply *mutatis mutandis* to the qualifications of members of the KOSDAQ Market Committee. (Amended on 21, 2018)

(6) Any committee member who has special interests in relation to the resolution of the KOSDAQ Market Committee shall not exercise his/her voting rights, and the number of such members shall not be included in the number of members on the register. [July 16, 2014]

(7) Any member of the KOSDAQ Market Committee and any person who has been in the position shall not leak or utilize any confidential information he/she has acquired about his/her job.

(8) If any member of the KOSDAQ Market Committee is significantly unfit to perform his/her duties, or in breach of any obligations stipulated in the relevant statutes or the articles of incorporation, he or she may be dismissed by the resolution at the general meeting of shareholders. [July 16, 2014]

(9) The KOSDAQ Market Committee shall perform the duties noted in each of the following subparagraphs. (Amended on July 16, 2014; February 21, 2018; April 14, 2021)

1. To review business plans of the KOSDAQ Market Division and the budget related thereto and approve the use of reserve allocated to the KOSDAQ Market Division;
2. To make the decisions on the formulation, amendment and abolition of the business regulation (excluding matters concerning the clearing, settlement and risk management), disclosure regulation and listing regulation of the KOSDAQ Market and KONEX Market;
3. Evaluation, approval, and abolition of securities listings in the KOSDAQ market. However, this shall be limited to the cases subject to the deliberation or resolution of the Listing Committee or Listing Maintenance Review Committee pursuant to the Listing Regulation; and
4. In addition, to review and assess the matters that the President of KOSDAQ Market deems necessary for the operation of KOSDAQ Market and KONEX Market.

(10) When the KOSDAQ Committee deems it necessary, it may delegate the duties set forth in paragraph (9)3 to the Listing Committee or Listing Maintenance Review Committee established by the KOSDAQ Market Committee. In this case, when the Listing Committee or Listing Maintenance Review Committee made a resolution on the delegated duties, it shall report it to the KOSDAQ Market Committee. [February 21, 2018]

(11) With respect to the delegation of duties, the scope of such delegation, the composition and operation of Listing Committee or Listing Maintenance Review Committee and other necessary matters shall be determined by the regulations of the KOSDAQ Market Committee. [February 21, 2018]

[October 2, 2013]

§48-3. Operation of KOSDAQ Market Committee

- (1) The KOSDAQ Market Chairperson shall convene and chair the meeting of the KOSDAQ Market Committee. However, in the case of mishap of the KOSDAQ Market Chairperson, the member appointed in advance by the KOSDAQ Market Committee shall carry out the tasks on behalf of the chairperson.
- (2) The members of KOSDAQ Market Committee may request the KOSDAQ Market Chairperson to call a meeting of the KOSDAQ Market Committee.
- (3) The decision of KOSDAQ Market Committee shall be made by a majority vote of the members presented.
- (4) The President or the executive officers of the KOSDAQ Market Division may present his/her opinions by attending the meetings of the KOSDAQ Market Committee. (Amended on February 21, 2018)
- (5) The matters necessary for the operation of KOSDAQ Market Committee and other necessary matters related to the KOSDAQ Market Committee shall be stipulated in the regulations of the KOSDAQ Market Committee.

[October 2, 2013]

§48-4. Functions of KOSDAQ Market Division

The KOSDAQ Market Division shall perform the tasks specified in each of the following subparagraphs: (Amended on April 14, 2016; February 21, 2018; April 14, 2021)

1. Businesses related to the implementation of the duties of the KOSDAQ market committee under [§48-2(9)];
2. Businesses related to the market management such as the opening, closing, termination, or suspension of the KOSDAQ and KONEX markets;
3. Businesses related to the conclusion of securities transactions, etc. of the KOSDAQ and KONEX markets;
4. Businesses related to announcing the market prices of the KOSDAQ and CONEX markets;
5. Businesses related to listing examination, listing approval, and the delisting of securities in the KOSDAQ market and KONEX market. However, the duties of the KOSDAQ Market Committee under [§48-2(9)3] shall be excluded;
6. Businesses related to the report and disclosure of the listed corporations in the KOSDAQ and CONEX markets;

7. Businesses related to the management of the KOSDAQ or KONEX--listed corporations such as trading suspension, etc.;
8. Businesses related to the improvement of institutional arrangements including product development and the establishment and amendment of the relevant regulations (excluding matters concerning the clearing, settlement and risk management) of the KOSDAQ and KONEX markets;
9. Businesses related to the provision of order information and the operation of information and communications networks, etc. in relating to the OTC transaction of securities of the crowdfunding companies, etc.
10. Businesses related to the support for the moderation of mergers and acquisitions of small-medium enterprises and venture businesses; and
11. Other businesses incidental to subparagraphs 1 through 10.

[July 16, 2014]

§48-5. Operation of KOSDAQ Market Division

- (1) The President of the KOSDAQ Market Division shall be fully in charge of the tasks of the KOSDAQ Market Division pursuant to [§48-4]. (Amended on February 21, 2018)
- (2) In case of absence of the President of the KOSDAQ Market Division, the executive, designated by the KOSDAQ Market Committee in advance, shall substitute for the President pursuant to paragraph (1).

[July 16, 2014]

Section 5. Market Oversight Committee and Market Oversight Division

(Amended on July 16, 2014)

§49. Composition and Duties of Market Oversight Committee

- (1) Except for the Chairperson of the Market Oversight Committee, the member of the Market Oversight Committee pursuant to [§402(2)] of the Act shall be a non-standing member and be appointed by the Board. (Amended on January 14, 2009; October 2, 2013; May 15, 2015)
- (2) The members of the Market Oversight Committee shall be appointed for a three-year term and may be reappointed.
- (3) The members of the Market Oversight Committee shall not be dismissed before

completing his/her term, unless he/she fall under any of the followings: (Amended on January 14, 2009; February 21, 2018)

1. Case of falling under the disqualification criteria stipulated in [§382] of the Act;
2. Case where the Chairperson of the Market Oversight Committee has received a request for member dismissal from the Financial Services Commission pursuant to [§402(5)] of the Act;
3. Case of receiving a dismissal request from the Financial Services Commission pursuant to [§402(8)] and [§411(3)] of the Act;
4. Case where the accomplishment of member's duties is not feasible due to the physical and/or mental injury/impairment; and
5. Case where a member is deemed to be unfit to perform his/her duties as a member, because the member has acted contrary to the provisions of this Articles of Incorporation and other relevant statutes or has been negligent of his/her duties.

(4) The Market Oversight Committee shall undertake each of the following tasks and the tasks stipulated in this Articles of Incorporation: (Amended on January 14, 2009; October 2, 2013; March 5, 2014; July 16, 2014)

1. Market surveillance, investigation into abnormal trading and supervision of members;
2. Inter-market surveillance between the KOSPI Market, KOSDAQ Market, KONEX Market and Derivatives Market;
3. Decisions on the member discipline or the request for reprimands of implicated officers and employees of member, in accordance with the findings of the investigation into abnormal trading, supervision of members and inter-market surveillance between the KOSPI Market, KOSDAQ Market, KONEX Market and Derivatives Market;
4. Tasks relating to independent mediation of the disputes arising from the transactions in the KOSPI Market, KOSDAQ Market and KONEX Market, and the transactions of exchange-traded derivatives in the Derivatives Market;
5. The formulation, amendment and abolition of the regulation on the market oversight pursuant to [§403] of the Act and the regulation on dispute mediation pursuant to [§405(1)] of the Act; and
6. Investigation of clearing member of OTC derivatives and the decisions about taking action against the relevant member or requesting the member to take disciplinary action against implicated officer/employee;
7. Tasks equivalent to those under subparagraphs 1 through 5 in the gold spot market and emissions trading market; and

8. Other tasks incidental to subparagraphs 1 through 7.

(5) When the Market Oversight Committee intends to amend or abolish the regulation on market oversight, the Chairperson of the Committee shall consult with the relevant President of Market Division and the President of the Clearing and Settlement Division in advance. (Amended on April 14, 2021)

§50. Operation of Market Oversight Committee

(1) The Chairperson of Market Oversight Committee shall call the meeting of Market Oversight Committee and preside over the meeting. However, in the time of absence of the Commission Chairperson, a member of Commission, in the order which was determined in advance by the Market Oversight Committee, shall carry out the responsibilities of the Commission Chairperson on his/her behalf.

(2) A member of the Market Oversight Committee may request the Commission Chairperson to convene the meeting of the Market Oversight Committee.

(3) The Market Oversight Committee shall make the decisions by a majority of the votes casted by the members presented.

(4) The executive officers of the Market Oversight Division may attend the meeting of the Market Oversight Committee and present his/her opinions.

(5) Matters necessary for the operation of the Market Oversight Committee and other matters concerning the Market Oversight Committee shall be stipulated in the regulations of the Market Oversight Committee.

§51. Functions of Market Oversight Division

The Market Oversight Division shall undertake the tasks in each of the followings: (Amended on May 2, 2019)

1. Businesses related to the implementation of the work of the Market Oversight Committee stipulated in [§49(4)];
2. Businesses related to the improvement of systems relating to work of market oversight and establishment and amendment of relevant regulations;
3. Businesses related to the operation of computer systems concerning the work of market oversight; and
4. In addition, other businesses incidental to the tasks specified in subparagraphs 1 through 3.

§52. Operation of Market Oversight Division

(1) As the President of the Market Oversight Division, the Chairperson of the Market Oversight Committee shall take the overall responsibility for the operation of the Market Oversight Division pursuant to [§51].

(2) In the time of the absence of Division President, an executive officer, who has been designated in advance by the Market Oversight Committee, shall assume the responsibility of the Division President on his/her behalf.

CHAPTER VI. CLEARING AND SETTLEMENT COMMITTEE AND CLEARING AND SETTLEMENT DIVISION

[April 14, 2021]

§52-2. Composition and Duties of Clearing and Settlement Committee

(1) The Clearing and Settlement Committee shall consist of members in each of the following subparagraphs:

1. One (1) outside director representing the public interests;
2. President of the Clearing and Settlement Division;
3. Three (3) persons with expertise in the clearing, settlement and risk management, who fall under any of the followings:
 - (a) A person who holds a position of assistant professor or higher at an accredited university or is a research fellow at a research institute related to securities and derivatives, and has at least ten (10) years of combined academic experience, including working period at the university and related research institutes, etc.;
 - (b) A person who is qualified as a lawyer and has more than ten (10) years of combined legal experience in the legal profession, including working period as a judge, prosecutor, and lawyer; or
 - (c) Members under [§3] of the Membership Regulation (excluding non-clearing members), clearing members under [§7] of the OTC Derivatives Clearing and Settlement Business Regulation, or executives working full-time at an organization related to clearing and settlement.

(2) Members of the Clearing and Settlement Committee pursuant to paragraph (1), except for subparagraph 2, shall be non-standing and elected by the Board.

(3) The Chairperson of the Clearing and Settlement Committee (hereinafter referred to as “the Chairperson of the Clearing and Settlement Committee”) shall be a member falling

under subparagraph 1 of paragraph (1). Provided that, if the Chairperson is unable to perform his/her duties due to unavoidable reasons, a member shall act on his/her behalf in the order of the members determined in advance by the Clearing and Settlement Committee.

(4) The term of office of the members in subparagraph 3 of paragraph (1) shall be two (2) years and may be extended for one (1) additional year each time when the term of office expires.

(5) Any member of the Clearing and Settlement Committee whose term of office expires shall perform his/her duties until his/her successor is appointed.

(6) The provisions of [§5] of the Act on Corporate Governance of Financial Companies shall apply *mutatis mutandis* to the qualification of members of the Clearing and Settlement Committee.

(7) Any member of the Clearing and Settlement Committee and any person who has been in the position shall not leak or utilize any confidential information that he/she has acquired in relation with his/her job.

(8) If any member of the Clearing and Settlement Committee is significantly unfit to perform his/her duties, or in breach of any obligations stipulated in the relevant laws or the articles of incorporation, he or she may be dismissed by the resolution of the Board.

(9) The Clearing and Settlement Committee shall perform the duties noted in each of the following subparagraphs:

1. To review business plans of the Clearing and Settlement Division and the budget related thereto and approve the use of reserve allocated to the Clearing and Settlement Division;

2. To make the decisions on the formulation, amendment and abolition of the matters concerning the clearing, settlement and risk management among matters of business regulation concerning the operation of the Markets and the business regulation concerning the clearing of OTC derivative products; and

3. In addition, to deliberate matters that the President of the Clearing and Settlement Division deems necessary in relation with the clearing, settlement and risk management.

[April 14, 2021]

§52-3. Operation of Clearing and Settlement Committee

(1) The Chairperson of Clearing and Settlement Committee shall call the meeting of Clearing

and Settlement Committee and preside over the meeting.

(2) A member of the Clearing and Settlement Committee may request the Chairperson to convene the meeting of the Clearing and Settlement Committee.

(3) The Clearing and Settlement Committee shall make the decisions by a majority of the incumbent members.

(4) Members who have a special interest in the resolution of the Clearing and Settlement Committee shall not exercise their voting rights, and the number of such members shall not be included in the number of incumbent members.

(5) Matters necessary for the operation of the Clearing and Settlement Committee and other matters concerning the Clearing and Settlement Committee shall be stipulated in the regulations of the Clearing and Settlement Committee.

[April 14, 2021]

§52-4. Functions of Clearing and Settlement Division

The Clearing and Settlement Division shall undertake the tasks in each of the followings:

1. Business related to the clearing, settlement, and risk management of securities transaction executed in the KOSPI, KOSDAQ, and KONEX Markets;
2. Business related to the clearing, settlement, and risk management of the transaction of the Exchange-traded derivatives in the Derivatives Market;
3. Business related to the confirmation, clearing, settlement and risk management of the transactions of the OTC derivatives;
4. Business related to the clearing linked with overseas clearing organizations;
5. Business related to the improvement of the clearing, settlement, and risk management system for the transactions in the securities market, derivatives market and OTC derivative market, and the formulation and amendment of relevant regulations;
6. Business related to expand the scope of products subject to the clearing and settlement; and
7. In addition, other business incidental to the tasks specified in subparagraphs 1 through 6.

[April 14, 2021]

§52-5. Operation of Clearing and Settlement Division

(1) The President of the Clearing and Settlement Division shall take the overall responsibility for the operation of the Clearing and Settlement Division pursuant to [§52-4].

(2) If the President of the Clearing and Settlement Division is unable to perform his/her duties due to unavoidable reasons, a person shall carry out the duty pursuant to paragraph (1) on behalf of the President of the Clearing and Settlement Division as determined by the Chairman in advance.

[April 14, 2021]

CHAPTER VII. ACCOUNTING

§53. Business Year

The business year of the Exchange shall begin on 1st of January and end on 31st of December each year.

§54. Appropriation of Retained Earnings

(1) The Exchange shall appropriate the inappropriate retained earnings of each business year as noted in the followings: (Amended on April 10, 2007)

1. Earned surplus reserve;
2. Various legal reserves;
3. Dividends;
4. Settlement reserve;
5. Reserve for business expansion;
6. Dividend equalization reserve;
7. Other voluntary reserves; and
8. Other appropriations of retained earnings.

(2) The settlement reserve shall be used only for the purpose other than the cases where the Exchange compensates for the losses caused members' failure to fulfill their settlement obligations for the securities trades or derivatives trades. (Amended on January 14, 2009; October 2, 2013)

(3) The settlement reserve noted in paragraph (2) shall be accumulated separately according to each of the following subparagraphs: [October 2, 2013]

1. Settlement of securities trade or exchange-traded derivatives; and
2. Settlement of OTC derivatives.

(4) The reserve for business expansion shall be used for the acquisition of real estates, development of computer systems and others that are necessary for the accomplishment of the business of the Exchange.

(5) The dividend equalization reserve shall not be used for the purpose other than the capitalization for the cash dividends or stock dividends paid to the shareholders. [April 10, 2007]

§55. Dividends

(1) Dividends may be paid in cash or stocks.

(2) The Exchange may pay an interim cash dividend once a business year, using June 30 as the record date, upon the decision of Board.

(3) The dividends specified in paragraphs (1) and (2) shall be paid to the shareholders or pledges listed on the register of shareholders as of the record date for interim dividend or the end of each accounting period.

§56. [Deleted on April 10, 2007]

CHAPER VIII. SUPPLEMENTARY PROVISIONS

§57. Establishment of Committees

(1) The Exchange may establish or maintain the committees for the advice or deliberation on the material matters relating to its business.

(2) The type, decision-making processes and other matters relating to the operation of the committees shall be stipulated in the regulations of the Board.

§58. [Deleted on April 10, 2007]

§59. Conclusion of Business Performance Agreement

(1) The Exchange shall conclude the business performance agreement (including the details of management information disclosure, business performance assessment, budget planning guidelines, etc.) with Financial Services Commission to encourage the sound business operation.

(2) The Exchange shall comply with the budget planning guidelines and consultation process with Financial Services Commission pursuant to the agreement of paragraph (1) when compiling budget.

(3) The Exchange shall decide the performance remuneration of executives and employees according to the results of the business performance assessment pursuant to the agreement in paragraph (1).

[March 4, 2015]

ADDENDA
(January 26, 2005)

§1. Effective Date

This Articles of Incorporation shall become effective on the date the Exchange is registered pursuant to [§11] of the Addenda of the Act.

§2. Interim Measures for Election and Appointment of Officers

The officers who have been elected at the inauguration general shareholders' meeting shall be deemed as the officers elected in accordance with the nomination pursuant to [§19].

ADDENDA
(April 10, 2007)

§1. Effective Date

This Articles of Incorporation shall become effective on April 11, 2007. However, the amended provisions of [§9-3(2)2, 4 & 6, §9-4, §9-5, §10-2(1)3, §10-3(1)3, §11 and §58] shall become effective on the day after the listing date of the shares issued by the Exchange.

§2. Exception in Share Transfer by Distribution

Notwithstanding [§1p] of this Addenda (dated on April 10, 2007), in case where the shares are transferred by way of distribution in accordance with the Securities and Exchange Act for the purpose of listing the stocks issued by the Exchange, the amended provisions of [§58] shall be applied.

ADDENDUM
(January 14, 2009)

This Articles of Incorporation shall become effective on February 4, 2009.

ADDENDA
(April 15, 2009)

§1. Effective Date

This Articles of Incorporation shall become effective on April 15, 2009

§2. Interim Measures for Appointment of Officers

The officers elected and appointed before the effective date of this Articles of Incorporation shall deem that they has been appointed in accordance with [§19] of this Articles of Incorporation and the term of office of the officers appointed before January 29, 2009 shall be subject to the provisions of the previous version of the Articles of the Incorporation.

ADDENDUM (April 21, 2010)

This Articles of Incorporation shall become effective on April 22, 2010.

ADDENDUM (May 18, 2011)

This Articles of Incorporation shall become effective on May 23, 2010.

ADDENDUM (March 29, 2012)

This Articles of Incorporation shall become effective on March 30, 2012.

ADDENDA (October 2, 2013)

§1. This Articles of Incorporation shall become effective on October 3, 3013.

§2. Interim Measures Related to the Operation of KOSDAQ Market Committee

Until the KOSDAQ Market Committee pursuant to [§52-2(1)] of this Articles of Incorporation is established, the KOSDAQ Market Committee pursuant to the former version of Articles of Incorporation shall continue to exist. In this case, the authorities and operational matters of the Committee shall be subject to the provisions of former version of this Articles of Incorporation.

ADDENDUM (March 5, 2014)

This Articles of Incorporation shall become effective on March 6, 2014.

ADDENDUM
(July 16, 2014)

This Articles of Incorporation shall become effective on July 17, 2014. However, amended provisions of [§38], [§39], [§41], [§48-2] and [§48-5] shall become effective from the date on which the resolution on the appointment of the KOSDAQ Market Chairperson at the shareholders meeting pursuant to the amended provisions of [§19(5)].

ADDENDUM
(March 4, 2015)

This Articles of Incorporation shall become effective from the date on which the Ministry of Strategy makes an announcement on the release of the Korea Exchange from the designation of the public institutions.

ADDENDA
(May 15, 2015)

§1. This Articles of Incorporation shall become effective on May 15, 2015.

§2. Interim Measures Related to the Term of Office of Officers

Notwithstanding the amended provision of [§21], the term of office of officers appointed or elected before the effective date of this Articles of Incorporation shall be comply with the former regulations, however, it may be extended by a period of one (1) year in case where an officer's term is expired.

ADDENDUM
(April 14, 2016)

This Articles of Incorporation shall become effective on April 15, 2016.

ADDENDUM
(February 21, 2018)

This Articles of Incorporation shall become effective on February 22, 2018. However, the amendment to [§9-5] shall become effective on the date of listing of the shares issued by the Exchange, and the amendments to [§48-2(9) through (11)] and subparagraph 5 of [§48-4] shall become effective on the date on which the KOSDAQ Market Committee was first established in accordance with the amendments to [§48-2(1) & (2)].

ADDENDUM
(May 2, 2019)

This Articles of Incorporation shall become effective on May 3, 2019.

ADDENDUM
(April 14, 2021)

This Articles of Incorporation shall become effective on April 16, 2021